SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUOR010373: TEVIS VERRETT vs COMMUNITY PROPERTY MANAGEMENT, et al.
08/04/2026 in Department 40
Motion to Enforce Permanent Injunction

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Paragraph 5 of the Judgment and Permanent Injunction states:

> "Consistent with the terms of the Mediator's Proposal, all fines for violations of HOA rules previously imposed against Plaintiff that relate to short-term vacation rentals at the Property are hereby deemed **null, void, and of no force or effect**. **Defendants shall remove all such fines from Plaintiff's account** and **shall not report, reference, or rely upon such fines for any purpose whatsoever**."

(Emphasis added.)

The parties do not dispute that the actual fines imposed amounted to $7,100 in total or that the HOA credited back each fine in February 2026. The Resident Transaction Report ("Report") also shows the credits. (Opp., Sue Wachtel Decl., Exh. 1.)

The dispute lies regarding the balance remaining on Plaintiff's account -- $2,529.63 as of March 1, 2026, according to the Report. Plaintiff argues that this entire sum remaining should be zero (or perhaps negative) given his payment history and the relevant law re how payments are to be applied under the Davis-Stirling Act. Defendants contend that this sum consists only of valid assessments, late charges, and accrued interest on the unpaid assessments.

According to the Report, for the month of January 2023, the assessment amount was $375, and Plaintiff paid $339. He was charged a late charge of $3.60 on January 15, 2023 and interest of $0.36 on January 31, 2023. In January and March 2023, the HOA imposed numerous fines, bringing his account balance to $1,780.72 by March 18, 2023. Of this sum, only $130.72 consisted of unpaid assessments, late charges, and interest, and the remainder consisted of the nullified fines ($1,650). On March 27, 2023, Plaintiff paid $1,780.72, thus bringing his balance down to zero.

The Judgment/Permanent Injunction ordered that all fines imposed on Plaintiff due to short-term vacation rentals were null and void and of no force and effect and that Defendants may not reference or rely on such fines "for any purpose whatsoever." The Court finds that this means that the fines imposed by the HOA are deemed to have never existed. Thus, Plaintiff's payment of $1,780.72 on March 27, 2023 should retroactively have been applied towards only the assessments (first) and then the late charges and interest (second) due as of March 27, 2023 (i.e., $130.72). Thus, as of March 27, 2023, Plaintiff had overpaid by $1,650 and had a credit for that amount.

The $1,650 credit should then have been applied towards the shortfall in assessment payments made by Plaintiff after March 27, 2023, until the sum was exhausted. If this had been done, it appears likely that Plaintiff would have owed no further assessments, which would also have wiped out any late charges and interest that the HOA added on. The HOA's position ignores the foregoing factual assessment.

Defendants should have treated the nullified fines as if they never existed. Keeping the fines on the ledger and applying any payment towards the fines violates the court order to remove the fines completely. The HOA is to apply the March 27, 2023 payment first towards any assessments due and then any valid late charges and interest due at that time. Thereafter, the HOA is to apply the balance of the $1,650 credit towards future unpaid assessments first and then late charges/interest. All late charges and interest must be recalculated in light of the foregoing reallocation. For purposes of calculating the current balance owed by Plaintiff, all fines and related charges are to be deleted. Defendant is to provide Plaintiff with a new itemized statement of his account as so restated.

The Report also shows that on January 5, 2026, Plaintiff was charged $35 for "title search" and $95 for "pre-lien charge." The Report further carries $597.80 in charges arising from the Association's small-claims litigation against Plaintiff in June 2023. The HOA is also to delete the costs of the small claims action to the extent that they rely on any amounts due that are eliminated by the foregoing reallocation. If the January 5, 2026 title search fee and pre-lien charge are also related to unpaid assessments, late charges, and/or interest eliminated by the foregoing reallocation, they also should be credited back to Plaintiff. The HOA shall release any lien asserted against Plaintiff's property based on eliminated unpaid assessments, late charges, and/or interest and provide Plaintiff with a recorded copy of such release.

It is puzzling to the Court as to why the HOA imposed late charges in 2024 when Plaintiff was paying the monthly assessments as due. The HOA should review and correct such charges.

The Court will set an OSC re Why Defendants Should Not Be Held in Contempt for Violation of the Permanent Injunction.

Plaintiff is awarded his costs in connection with this motion. His request for attorney fees is denied. A non-attorney acting in propria persona may not recover attorney fees. (*Atherton v. Board of Supervisors* (1986) 176 Cal.App.3d 433.)